

which have just been mentioned the influence of Roman Law exerted itself strongly and with enduring effect.

In 1857 it was deemed advisable that the civil law system of the province should be revised and recodified, for there had been no important revision since 1773. The work was committed to a commission of French-Canadian jurists by whom it was accomplished with high credit. When the task was completed, the compilation was enacted as the Code Civil de Québec. If there was any one feature which marked the labors of this commission, it was the unremitting attention which they gave to the Code Napoléon and the large extent to which they drew from this source. In its arrangement the Code Civil de Québec follows the Code Napoléon almost slavishly. In matter the dependence is extensive and obvious. Many articles are reproduced verbatim; many others show only mere verbal transposition. With the exception of a single book,¹ indeed, the Code Civil de Québec may be much more properly looked upon as a recension of the Code Napoléon than as a revision and recodification of the French civil law as it had existed in the colony before the English conquest.

Now those who are familiar with the history of the legal system of modern France do not need to be reminded of the mighty debt which the Code Napoléon owes to the Roman Law. This obligation, direct and indirect, is made perfectly clear in the collection of sources which the Bonapartist compilers used in the consummation of their monumental task.² The legal system of France had been steadily romanized during the century preceding the Revolution, and the compilers of the Code Napoléon completed the process. It may not be amiss therefore to point out that the Code Civil de Québec, in so far as it is based upon the Napoleonic compilation, shares equally in indebtedness to the jurisprudence of Justinian. It is probably well within the bounds of truth to suggest that more Roman law found its way into the contemporary legal system of French Canada by way of the Code Napoléon than through any other channel, or, possibly, through all other channels combined.

The dominance of Roman juridical ideas in this province is not, therefore, a heritage from the days of French possession. It is not because the French established there the Custom of Paris; but

¹ Book IV.

² These sources are brought together in Fenet's *Recueil complet des travaux préparatoires du Code Civil* (15 vols., Paris, 1827-1829).